

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on November 26, 2025, and January 9, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are vacated from Department 16 and 57's calendar and are referred for further hearing to the Discovery Referee.

2. By no later than December 5, 2025, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by December 5, 2025, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, December 8, 2025. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for November 26, 2025 and January 9, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. 9:00 AM CASE NUMBER: C24-03428

CASE NAME: HAROLD WOULD DEVELOPMENT, LLC VS. COLE RICHMAN

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S SPECIALLY PREPARED INTERROGATORIES (SET ONE)

FILED BY: HAROLD WOULD DEVELOPMENT, LLC

TENTATIVE RULING:

See Line 7, above.

9. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER
FILED BY: DOE, ALYSSA
TENTATIVE RULING:

Summary

This Tentative Ruling is for Lines 9 and 10. Christopher J. Keller's Motions to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC are **granted**. No appearance is required at the hearing on November 26, 2025.

Background

On September 17, 2025, Christopher J. Keller, Esq., filed a Notice of Motion and Motion to be Relieved as Counsel of Record for Defendants Alyssa Doe and Elite Facials, LLC. In his Motion, counsel cites to "irreconcilable differences," which the Court considers to be a breakdown in the attorney-client relationship that makes continued representation unreasonably difficult. The Motions are not opposed by Plaintiff. Notice was provided to Defendants Alyssa Doe and Elite Facials, LLC.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to both Defendants and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Defendants' Counsel. The Court acknowledges that the prejudice to Defendants are minimal, as they have not shown a willingness or availability to be involved in this case. This case was filed in 2025 and a trial date has not been set. Defendants have time to retain replacement counsel.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. Both Motions are **granted**.

Counsel is ordered to submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053). The withdrawal is effective upon service of a copy of the File Endorsed Order to Defendants Alyssa Doe and Elite Facials, LLC by mail at his last known address. No appearance is necessary at the hearing on November 26, 2025.